

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DAVID BARRETT and MAEGAN DOUGLAS

SUMMONS

Index No.:

PLAINTIFFs,

The Basis of Venue is:
Location of Incident

-against-

PLAINTIFFs designate KINGS
County as the place of trial.

CITY OF NEW YORK; VAHID HODZIC; CONOR
MCGOURAN; JULIO ACURIA; JUSTIN SUAREZ;
FRANDDY DURAN; KARLVIRN WILLIAMS; ALYSSA
STRONG; TIAGOM REIS; AND JOHN AND JANE DOE
ONE THROUGH TWELVE,

DEFENDANTs.

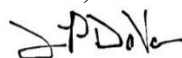
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To the above named DEFENDANTs:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the PLAINTIFFs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 28, 2024

Yours, etc.



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John Paul DeVerna, Esq.
Attorney for PLAINTIFF(s)
111 John Street, Suite 1850
New York, New York 10038

T- (212) 321-0025

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DEFENDANTS' Addresses:

CITY OF NEW YORK, Corporation Counsel; 100 Church Street, NY, NY 10007

VAHID HODZIC New York City Police Department, 84th Precinct - 301 Gold St, Brooklyn, NY 11201CONOR MCGOURAN, New York City Police Department, 84th Precinct - 301 Gold St, Brooklyn, NY 11201JULIO ACURIA, New York City Police Department, 84th Precinct - 301 Gold St, Brooklyn, NY 11201JUSTIN SUAREZ, New York City Police Department, 84th Precinct - 301 Gold St, Brooklyn, NY 11201FRANDDY DURAN, New York City Police Department, 84th Precinct - 301 Gold St, Brooklyn, NY 11201KARLVIRN WILLIAMS, New York City Police Department, 84th Precinct - 301 Gold St, Brooklyn, NY 11201ALYSSA STRONG, New York City Police Department, 84th Precinct - 301 Gold St, Brooklyn, NY 11201TIAGOM REIS New York City Police Department, 84th Precinct - 301 Gold St, Brooklyn, NY 11201

JOHN AND JANE DOE ONE THROUGH TWELVE, 1 Police Plaza Path, New York, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DAVID BARRETT and MAEGAN DOUGLAS

INDEX NO.:

VERIFIED COMPLAINT

PLAINTIFFs,

-against-

JURY TRIAL DEMANDED

CITY OF NEW YORK; VAHID HODZIC; CONOR
MCGOURAN; JULIO ACURIA; JUSTIN SUAREZ;
FRANDDY DURAN; KARLVIRN WILLIAMS;
ALYSSA STRONG; TIAGOM REIS; AND JOHN AND
JANE DOE ONE THROUGH TWELVE,

DEFENDANTs

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PLAINTIFFs DAVID BARRETT and MAEGAN DOUGLAS by their attorney, JOHN
PAUL DEVERNA ESQ PC, as and for their Verified Complaint herein, alleges upon information
and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of DEFENDANTs' violation of PLAINTIFFs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. PLAINTIFFs' claims arise out of a July 31, 2023, incident, in which DEFENDANTs acting under color of state law unlawfully stopped, detained, and arrested, PLAINTIFF BARRETT, and used excessive force upon PLAINTIFF BARRETT. PLAINTIFF

BARRETT was maliciously prosecuted until the matter ended in PLAINTIFF's favor on November 16, 2023.

3. Further, arising out of the same incident, DEFENDANTS acting under color of state law unlawfully used unlawfully stopped, detained, and arrested PLAINTIFF DOUGLAS, and used excessive force upon PLAINTIFF DOUGLAS.
4. As a result, PLAINTIFFs suffered serious physical and emotional injuries.
5. PLAINTIFFs seek monetary damages (compensatory and punitive) against DEFENDANTS, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PROCEDURAL HISTORY

6. PLAINTIFF BARRETT in furtherance of their cause of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50, in accordance with controlling New York State law and jurisprudence.
7. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims or otherwise resolved them.
8. PLAINTIFF BARRETT has complied with municipal DEFENDANT's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
9. This action and all associated claims have been timely brought within the applicable statutes of limitations.
10. PLAINTIFFs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

11. PLAINTIFFs seek monetary damages (compensatory and punitive) against DEFENDANTs, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

12. PLAINTIFF DAVID BARRETT is a resident of the state of New Jersey.
13. PLAINTIFF MAEGAN DOUGLAS is a resident of the state of New York.
14. The DEFENDANT City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
15. At all times relevant hereto, DEFENDANT City, acting through the NEW YORK CITY POLICE DEPARTMENT, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, agents, office holders, supervisors, as well as the individually named DEFENDANTs herein.
16. In addition, at all times here relevant, DEFENDANT City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
17. At all times relevant hereto, DEFENDANT City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named DEFENDANTs herein.

18. In addition, at all times here relevant, DEFENDANT City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
19. DEFENDANT VAHID HODZIC was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. DEFENDANT VAHID HODZIC was, at the time relevant herein, a police officer in the 84th Precinct. DEFENDANT VAHID HODZIC is sued in their individual and official capacities.
20. DEFENDANT CONOR MCGOURAN was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. DEFENDANT CONOR MCGOURAN was, at the time relevant herein, a police officer in the 84th Precinct. DEFENDANT CONOR MCGOURAN is sued in their individual and official capacities.
21. DEFENDANT JULIO ACURIA was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. DEFENDANT JULIO ACURIA was, at the time relevant herein, a police officer in the 84th Precinct. DEFENDANT JULIO ACURIA is sued in their individual and official capacities.
22. DEFENDANT JUSTIN SUAREZ was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. DEFENDANT JUSTIN SUAREZ was, at the time relevant herein, a police officer in the 84th Precinct. DEFENDANT JUSTIN SUAREZ is sued in their individual and official capacities.

23. DEFENDANT FRANDDY DURAN was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. DEFENDANT FRANDDY DURAN was, at the time relevant herein, a police officer in the 84th Precinct. DEFENDANT FRANDDY DURAN is sued in their individual and official capacities.
24. DEFENDANT KARLVIRN WILLIAMS was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. DEFENDANT KARLVIRN WILLIAMS was, at the time relevant herein, a police officer in the 84th Precinct. DEFENDANT KARLVIRN WILLIAMS is sued in their individual and official capacities.
25. DEFENDANT ALYSSA STRONG was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. DEFENDANT ALYSSA STRONG was, at the time relevant herein, a police officer in the 84th Precinct. DEFENDANT ALYSSA STRONG is sued in their individual and official capacities.
26. DEFENDANT TIAGOM REIS was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. DEFENDANT TIAGOM REIS was, at the time relevant herein, a police officer in the 84th Precinct. DEFENDANT TIAGOM REIS is sued in their individual and official capacities.
27. At all times relevant, DEFENDANTs JOHN AND JANE DOE ONE THROUGH TWELVE were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, PLAINTIFF does not know

the real names and/or shield number of DEFENDANTS JOHN AND JANE DOE ONE THROUGH TWELVE, but such information is believed to be in the possession of the DEFENDANTS.

28. At all times relevant herein, DEFENDANTS JOHN AND JANE DOE ONE THROUGH TWELVE, were acting as agents, servants and employees of the City of New York and the NYPD. DEFENDANTS JOHN AND JANE DOE ONE THROUGH TWELVE, are sued in their individual and official capacities.
29. At all times relevant herein, the individual DEFENDANTS were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

FACTUAL CHARGES

30. On or about July 31, 2023, at approximately 4:38 PM, PLAINTIFFs were in the vicinity of 141 Livingston Street, Kings County NY, 11201 within a car with three other people, AD, AJ, MB.
31. PLAINTIFF BARRETT was seated in the driver's seat of the vehicle, while PLAINTIFF DOUGLAS was seated in a rear passenger seat.

32. PLAINTIFF BARRETT and PLAINTIFF DOUGLAS are in a committed relationship and have been for a significant period of time. Together they have a child in common.
33. PLAINTIFF BARRETT and PLAINTIFF DOUGLAS are the parents of AJ.
34. PLAINTIFF DOUGLAS is the parent of JB. PLAINTIFF BARRETT and SE are the parents of MB.
35. At the time of the incident JB, AJ, and MB were minors.
36. As they were traveling, DEFENDANT Officers, including VAHID HODZIC, CONOR MCGOURAN, JULIO ACURIA, JUSTIN SUAREZ, FRANDDY DURAN, KARLVIRN WILLIAMS, ALYSSA STRONG, TIAGOM REIS, and JOHN AND JANE DOE ONE THROUGH TWELVE, suddenly used their vehicle to block off PLAINTIFFs' vehicle and surrounded the vehicle preventing PLAINTIFFs from leaving the confines of their vehicle and otherwise interfering with their freedom of movement.
37. Several DEFENDANT Officers demanded PLAINTIFF BARRETT produce his license and registration.
38. PLAINTIFF BARRETT complied with the order.
39. DEFENDANT Officers then unlawfully ordered PLAINTIFF to exit the vehicle.
40. Shortly after asking why he was being ordered out of the vehicle, DEFENDANT Officers without adequate cause purposefully broke the driver's side window of the vehicle in which the PLAINTIFFs were seated causing it to shatter and causing damage to the vehicle.
41. DEFENDANT Officers, including DEFENDANTs VAHID HODZIC, CONOR MCGOURAN, JULIO ACURIA, JUSTIN SUAREZ, FRANDDY DURAN, KARLVIRN WILLIAMS, ALYSSA STRONG, TIAGOM REIS, and JOHN AND JANE DOE ONE THROUGH TWELVE, then while acting in concert, without adequate cause and in

contravention of NYPD policies and procedures and the law more generally, assaulted PLAINTIFF BARRETT.

42. During the assault, DEFENDANT Officers went to the other side of the vehicle, pulling AJ out of the front passenger side and dragging PLAINTIFF BARRETT out through the door.
43. Additionally, PLAINTIFF BARRETT was thrown to the ground multiple times and was, at least once, lifted into the air and slammed onto the pavement by DEFENDANT Officers.
44. Further, PLAINTIFF BARRETT was tased several times by DEFENDANT officers both in and out of the vehicle, as well as struck about various parts of his body.
45. DEFENDANTS while acting in concert, stopped, detained, and arrested PLAINTIFF DOUGLAS by, among other things, stopping the vehicle she was traveling in, making her exit the vehicle, then making her to remain in the vehicle, and otherwise generally restraining her freedom of movement.
46. PLAINTIFF BARRETT was not told what he was being arrested for.
47. PLAINTIFF BARRETT did not resist a lawful arrest and complied with all lawful orders.
48. Based on information and belief, a DEFENDANT Supervisor was present on the scene and did not stop the unlawful arrest of PLAINTIFFs.
49. At the time of PLAINTIFFs' detention and arrest, DEFENDANT Officers did not have probable cause or reasonable suspicion to believe PLAINTIFFs had committed any criminal offense or violation of the law. Further, given the information available, DEFENDANTS knew or should have known PLAINTIFFs were innocent of any wrongdoing or should have further inquired into the matter prior to making any arrest.

50. After PLAINTIFF BARRETT's arrest he was transferred to the 83rd Precinct where he was subjected to a search of the intimate parts of his body causing embarrassment and humiliation.
51. PLAINTIFF DOUGLAS, was released from the scene and was made to make passage home with her children, deprived of the vehicle and her companion.
52. PLAINTIFF BARRET was falsely charged with assorted crimes under arrest number (K23638766).
53. DEFENDANTS prepared false sworn affidavits and false police reports relating to PLAINTIFFS' detainment and arrest.
54. The DEFENDANT police officers falsely stated to the KINGS County District Attorney's Office that PLAINTIFF BARRETT had committed a crime despite knowing that they lacked a legal and a factual basis to allege that PLAINTIFF BARRETT committed any crime.
55. Based on the information provided to them, the KINGS County District Attorney's Office charged PLAINTIFF with several charges under CR-027207-23KN, all of which were later dismissed.
56. PLAINTIFF BARRETT was unlawfully detained for several hours before being released.
57. PLAINTIFF DOUGLAS was unlawfully detained for several minutes before being released.
58. DEFENDANTS' actions did cause PLAINTIFF BARRETT to become fearful for his life and safety and did cause emotional and physical injuries to him, the full extent of which is still unknown.

59. DEFENDANTS' actions did cause PLAINTIFF DOUGLAS to become fearful for her life and safety and did cause extensive emotional and psychological injuries, the full extent of which is still unknown.
60. Some of the DEFENDANT officers, as well as the DEFENDANT City, knew or should have had reason to know of the assaulting officers' temperament and propensity for violence yet failed to appreciate the risk posed to the public and further failed to take adequate precautions to prevent the conduct as described herein
61. DEFENDANTS were knowingly and deliberately indifferent to the possibility that its police officers, were wont to violate the constitutional rights of arrestees as described herein.
62. DEFENDANT Officers placed PLAINTIFF BARRETT in unreasonably tight handcuffs, which PLAINTIFF BARRETT complained about, and which did cause severe injuries to PLAINTIFF's wrists.
63. DEFENDANTS repeatedly falsified information relating to the facts and circumstances surrounding the incident.
64. During all of the events described, DEFENDANTS acted maliciously, willfully, knowingly and with the specific intent to injure PLAINTIFFs and violate their civil rights.
65. Some of the DEFENDANT officers who did not participate in the incident but were otherwise present and observed the violation of PLAINTIFFs' constitutional rights failed to intercede on PLAINTIFFs' behalf.
66. PLAINTIFFs' injuries were a foreseeable result of DEFENDANT officers unlawful conduct and was the proximate cause of their injuries.

67. The City has been on notice that DEFENDANTS VAHID HODZIC, CONOR MCGOURAN, JULIO ACURIA, JUSTIN SUAREZ, FRANDDY DURAN, KARLVIRN WILLIAMS, ALYSSA STRONG, TIAGOM REIS, and JOHN AND JANE DOE ONE THROUGH TEN, had a history and practice of misconduct against individuals but failed to take appropriate corrective action. Indeed, A review of their CCRB and Civil lawsuit history¹ shows the following: VAHID HODZIC (1 CCRB complaint); CONOR MCGOURAN (5 CCRB complaints on 2 different dates); JULIO ACURIA (8 CCRB complaints with 5 substantiated on 4 different dates) as well as being a named officer in several lawsuits alleging police misconduct including, Supreme Court Kings 510836/2020, Supreme Court Kings 512701/2021, and whose NYPD Internal Misconduct Records show they are part of an investigation under case number 2014-12131); JUSTIN SUAREZ (8 CCRB complaints on 3 different dates); FRANDDY DURAN (1 CCRB complaint); KARLVIRN WILLIAMS (1 CCRB complaint), TIAGOM REIS (6 CCRB complaints with 2 substantiated on 2 different dates), as well as being a named officer in several lawsuits, including U.S. District Court – Eastern District NY 22CV07505 and U.S. District Court – Eastern District NY 23V000282, and whose NYPD Internal Misconduct Records show they are part of an Internal Investigation.
68. The City has been on notice for more than a generation that brutality is widespread and that particular reforms need to be implemented. From reform-minded Commissioner Patrick Murphy to the *Mollen* Commission twenty-five years later, the City has been repeatedly cautioned that a systemic tolerance for brutality flourishes throughout the NYPD. Indeed,

¹ The cited information was procured from Law Enforcement Lookup (LELU) “an extension of the Legal Aid Society’s Cop Accountability Project (CAP), which empowers organizations and communities across New York City to hold police officers accountable for civil rights violations” See <https://legalaidnyc.org/law-enforcement-look-up/>

years before said violation was perpetrated upon PLAINTIFF, the *Mollen* Commission report noted, “This tolerance, or willful blindness, extends to supervisors as well”.

69. PLAINTIFFs assert that the DEFENDANTS who violated PLAINTIFF's civil rights, are part of a larger pattern and practice of similar conduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission of such constitutionally violent behavior has become tantamount to an official policy or custom within the NYPD, and the City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the Civil Rights of those who may come into contact with police officers.
70. The individually named DEFENDANTS herein, as well as other officers serving in the employee of the NYPD, and the City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by the Constitution of the United States, in addition to the laws and Constitution of the State of New York, or without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, The City of New York and their respective policymakers and supervisors.
71. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption with the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD obstinate refusal to effectuate corrective or preventive measures to

combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead reward and promote these officers including those who are implicated via some incontrovertible form of evidence.

72. On March 18, 2018, *The New York Times* published an explosive article entitled *Promotions, Not Punishments For Officers Accused of Lying*, written by Joseph Goldstein. Mr. Goldstein shines the light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity of this type of evidence, in alarmingly small percentage of officers' misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's reluctance or to investigate or disciplines officers who lie and posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusation relating to the officers intentionally false statements, with some allegations coming from federal and state judges.
73. The NYPD has a long-standing and ignominious record of failing to discipline its officers or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article entitled *2495 Reports of Police Bias*. One was deemed valid by the NYPD worried that within the last five years almost 2,500 several individuals have filed formal complaint with the NYPD alleging that an officer acted with biased towards them, would not one single being substantiated by the NYPD such a finding is playing the incredible and obviously the result of a deliberately poor or non-existent

investigatory protocol the report commitment to combat the prejudices and the bias is exhibited by many of their officers.

74. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in PLAINTIFF's arrest without probable cause
75. Upon information and belief, the NYPD, the city of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reason suspicion or the appropriate amount of force to be used.
76. DEFENDANT's actions, pursuant to PLAINTIFFs' underlying detainment and arrest, which occurred without even the semblance of probable cause, were so blatantly violative of PLAINTIFF's civil rights that the tacit approval by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the right of any individuals who may come into contact with dependents, should be inferred, because such makers deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers were supervisors of the NYPD, and City of New York.
77. Upon information and belief further details and facts relating to the unlawful policies customs or patterns and practices of the NYPD, the City of New York and their respective policymakers supervisors police officers or employees, will become known after the completion of Discovery, as such information is presently within the exclusive possession of DEFENDANTS, the NYPD, and the City of New York.

78. Upon information and belief, the personal files, records and disciplinary histories of the officers DEFENDANTs will reveal a history of constitutional violations indicative of DEFENDANT City's, knowledge that the individual officer DEFENDANTs were unfit for employment as NYPD officers, or poor employment in general, and that the probability of the individually named DEFENDANT committed similar violations in the future was extremely high.
79. Upon information and belief said personnel files records and disciplinary histories will conclusively show that the city, and the NYPD were fully aware DEFENDANT passed constitutional violations, unacceptably high probability for the reoccurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as Law Enforcement Officers, or for employment in general, and not the NYPD, and the City of New York to engage in any preventative or corrective action in the likelihood of recurrence for such violations, which is tantamount to the city of tacit approval of such misconduct or the city's deliberate indifference towards civil rights of those who may interact with employees including PLAINTIFFs.
80. As a direct and proximate result of the acts of DEFENDANTs, PLAINTIFF BARRETT suffered the following injuries and damages: violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

81. As a direct and proximate result of the acts of DEFENDANTS, PLAINTIFF DOUGLAS suffered the following injuries and damages: violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.
82. As a direct and proximate result of the acts of DEFENDANTS, PLAINTIFF BARRETT lost his occupation, causing a loss of past and future earnings, incurred and will incur in the future considerable expenses for medical and hospital care and treatment,
83. PLAINTIFF BARRETT was also deprived of the love, society, services, companionship, and affection of PLAINTIFF DOUGLAS, with whom their relationship suffered, as well as was prevented from attending his occupation causing a loss of past and future earnings, incurred and will incur in the future considerable expenses for medical and hospital care and treatment, as a result of DEFENDANTS' actions, all to his detriment.
84. PLAINTIFF DOUGLAS was deprived of the love, society, services, companionship, and affection of PLAINTIFF BARRETT, with whom their relationship suffered, as well as was prevented from attending her occupation causing a loss of past and future earnings, incurred and will incur in the future considerable expenses for medical and hospital care and treatment, as a result of DEFENDANTS' actions, all to her detriment.
85. Defendants actions, which JB, AJ, and MB did observe, did cause them to become alarmed annoyed, and to suffer emotional harm, the full extent of which is still unknown.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Unlawful Stop and Search
Under New York State Law

86. The above paragraphs are here incorporated by reference as though fully set forth.

87. DEFENDANTs violated Common Law, the Laws of the State of New York and the New York Constitution because they stopped PLAINTIFF without reasonable suspicion.
88. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of respondeat superior.
89. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to emotional and psychological injuries.
90. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT & PLAINTIFF DOUGLAS)

Unlawful Stop and Search

Under 42 U.S.C. § 1983 Against Individual DEFENDANTs

91. The above paragraphs are here incorporated by reference as though fully set forth.
92. DEFENDANTs entered PLAINTIFFs' property forcefully, entered the vehicle without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.
93. The individually named police officer DEFENDANTs while acting in concert and within the scope of their authority, caused PLAINTIFFs to be unlawfully stopped and searched, and subjected to denial of their due process rights and denied the right to a fair trial without probable cause in violation of PLAINTIFFs' right to be free of an unreasonable stop and seizure and denial of due process under the Fourth and Fifth and Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

94. DEFENDANTs were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
95. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of respondeat superior.
96. By reason of the foregoing, PLAINTIFFs suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
97. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Unlawful Seizure and Deprivation of Liberty
Under New York State Law

98. The above paragraphs are here incorporated by reference as though fully set forth.
99. The individually named police officer DEFENDANTs, while acting in concert and within the scope of their authority, caused PLAINTIFF to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of PLAINTIFFs' right to be free of an unreasonable seizure under the New York State Constitution and jurisprudence.
100. As a result of the aforementioned conduct of DEFENDANTs, PLAINTIFFs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Unlawful Seizure and Deprivation of Liberty
Under State Law (Violations of Fourth and Fourteenth Amendment)

101. The above paragraphs are here incorporated by reference as though fully set forth.

102. The individually named police officer DEFENDANTS, while acting in concert and within the scope of their authority, caused PLAINTIFF to be seized, unlawfully searched, falsely arrested, falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of PLAINTIFF's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
103. As a result of the aforementioned conduct of DEFENDANTS, PLAINTIFF sustained injuries, including but not limited to physical, emotional, and psychological injuries.

CAUSE OF ACTION (PLAINTIFF DOUGLAS)

Unlawful Seizure and Deprivation of Liberty
Under Federal Law (Violations of Fourth and Fourteenth Amendment)

104. The above paragraphs are here incorporated by reference as though fully set forth.
105. The individually named police officer DEFENDANTS, while acting in concert and within the scope of their authority, caused PLAINTIFF to be seized, unlawfully searched, falsely arrested, without reasonable suspicion and/or probable cause, in violation of PLAINTIFF's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
106. As a result of the aforementioned conduct of DEFENDANTS, PLAINTIFFs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Unlawful Entry
Under New York State Law

107. The above paragraphs are here incorporated by reference as though fully set forth

108. DEFENDANTs entered PLAINTIFF's property forcefully and without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.
109. DEFENDANTs violated Common Law, the Laws of the State of New York and the New York Constitution because they unlawfully entered the vehicle of PLAINTIFF.
110. DEFENDANTs were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
111. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
112. By reason of the foregoing, PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

CAUSE OF ACTION (PLAINTIFF BARRETT & PLAINTIFF DOUGLAS)

Unlawful Entry

Under 42 U.S.C. § 1983 Against Individual DEFENDANTs

113. The above paragraphs are here incorporated by reference as though fully set forth
114. DEFENDANTs entered PLAINTIFF BARRETT's vehicle forcefully and without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.
115. PLAINTIFF DOUGLAS had a superior possessory interest of the vehicle to that of DEFENDANTs.
116. By unlawfully entering the property of PLAINTIFFs, DEFENDANTs deprived PLAINTIFF of rights, remedies, privileges, and immunities guaranteed to every citizen, in violation of 42 U.S.C. § 1983, including rights guaranteed by the Fourth Amendment.

117. DEFENDANTs were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct
118. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
119. By reason of the foregoing, PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Unlawful Search and Seizure
Under New York State Law

120. The above paragraphs are here incorporated by reference as though fully set forth.
121. DEFENDANTs entered PLAINTIFF's property without permission, a warrant, exigent circumstances, or otherwise legal basis to do so and searched the vehicle.
122. DEFENDANTs violated Common Law, the Laws of the State of New York and the New York Constitution because they unlawfully searched the vehicle of PLAINTIFF
123. DEFENDANTs were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
124. The police officer DEFENDANTs while acting in concert and within the scope of their authority, caused PLAINTIFF's vehicle to be unlawfully entered, and the PLAINTIFF to be unlawfully searched and seized, subjected to denial of his due process rights and without probable cause in violation of PLAINTIFF's right to be free of an unreasonable search and seizure and denial of due process.

125. DEFENDANTS were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
126. DEFENDANT City, as employer of the individual DEFENDANTS, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
127. By reason of the foregoing, PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
128. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT & PLAINTIFF DOUGLAS)

Unlawful Search and Seizure

Under 42 U.S.C. § 1983 Against Individual DEFENDANTS

129. The above paragraphs are here incorporated by reference as though fully set forth.
130. DEFENDANTS entered PLAINTIFFs' property without permission, a warrant, exigent circumstances, or otherwise legal basis to do so and searched the vehicle.
131. PLAINTIFF DOUGLAS had a superior possessory interest of the vehicle to that of DEFENDANTS.
132. By unlawfully searching the property of PLAINTIFFs, DEFENDANTS deprived PLAINTIFFs of rights, remedies, privileges, and immunities guaranteed to every citizen, in violation of 42 U.S.C. § 1983, including rights guaranteed by the Fourth Amendment.
133. The police officer DEFENDANTS while acting in concert and within the scope of their authority, caused PLAINTIFF's vehicle to be unlawfully entered, and the PLAINTIFF to be unlawfully searched and seized, subjected to denial of their due process rights and

without probable cause in violation of PLAINTIFFs' right to be free of an unreasonable search and seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

134. DEFENDANTs were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
135. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
136. By reason of the foregoing, PLAINTIFFs suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
137. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT)

False Arrest and False Imprisonment
Under New York State Law

138. The above paragraphs are here incorporated by reference as though fully set forth.
139. DEFENDANTs subjected PLAINTIFF to false arrest, false imprisonment, and deprivation of liberty without probable cause.
140. PLAINTIFF was conscious of their confinement.
141. PLAINTIFF did not consent to their confinement.
142. PLAINTIFF's arrest and false imprisonment was not otherwise privileged.

143. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
144. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
145. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT)

False Arrest and False Imprisonment

Under 42 U.S.C. § 1983 Against Individual DEFENDANTs

146. The above paragraphs are here incorporated by reference as though fully set forth.
147. The DEFENDANTs violated the Fourth and Fourteenth Amendments to the U.S.
148. Constitution by wrongfully and illegally arresting, detaining and imprisoning PLAINTIFF.
149. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of PLAINTIFF was carried out without a valid warrant, without PLAINTIFF's consent, and without probable cause or reasonable suspicion.
150. At all relevant times, DEFENDANTs acted forcibly in apprehending, arresting, and imprisoning PLAINTIFF.
151. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
152. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

153. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF DOUGLAS)

False Arrest and False Imprisonment

Under 42 U.S.C. § 1983 Against Individual DEFENDANTs

154. The above paragraphs are here incorporated by reference as though fully set forth.
155. The DEFENDANTs violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, and detaining PLAINTIFF.
156. The wrongful, unjustifiable, and unlawful apprehension, arrest, and detention of PLAINTIFF was carried out without a valid warrant, without PLAINTIFF's consent, and without probable cause or reasonable suspicion.
157. At all relevant times, DEFENDANTs acted forcibly in apprehending, arresting, and detaining PLAINTIFF.
158. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
159. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to emotional and psychological injuries.
160. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Failure to Intervene

Under New York State Law

161. The above paragraphs are here incorporated by reference as though fully set forth.

162. Those DEFENDANTS that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
163. DEFENDANT City, as employer of the individual DEFENDANTS, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
164. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Failure to Intervene

Under 42 U.S.C. § 1983 Against Individual DEFENDANTS

165. The above paragraphs are here incorporated by reference as though fully set forth.
166. Those DEFENDANTS that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
167. Accordingly, the DEFENDANTS who failed to intervene violated the Fourth and Fourteenth Amendments.
168. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF DOUGLAS)

Failure to Intervene

Under 42 U.S.C. § 1983 Against Individual DEFENDANTS

169. The above paragraphs are here incorporated by reference as though fully set forth.
170. Those DEFENDANTS that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

171. Accordingly, the DEFENDANTS who failed to intervene violated the Fourth and Fourteenth Amendments.

172. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages herein before alleged.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Malicious Abuse of Process

Under New York State Law

173. The above paragraphs are here incorporated by reference as though fully set forth.

174. Dependents arrested, detained and caused a criminal prosecution to be initiated against PLAINTIFF to compel the compliance or forbearance of some act.

175. DEFENDANTS had no excuse or justification to forcibly detain or initiate a prosecution against PLAINTIFF, especially with the absence of any cognizable probable cause.

176. DEFENDANT intended to inflict substantial harm upon PLAINTIFF.

177. DEFENDANT acted to achieve a collateral purpose, beyond or in addition to PLAINTIFF's criminal prosecution.

178. DEFENDANT City, as employer of the individual DEFENDANTS, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

179. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Malicious Abuse of Process

Under 42 U.S.C. § 1983 Against Individual DEFENDANTS

180. The above paragraphs are here incorporated by reference as though fully set forth.

181. Dependents arrested, detained and caused a criminal prosecution to be initiated against PLAINTIFF to compel the compliance or forbearance of some act.

182. DEFENDANTS had no excuse or justification to forcibly detain or initiate a prosecution against PLAINTIFF, especially with the absence of any cognizable probable cause.
183. DEFENDANT intended to inflict substantial harm upon PLAINTIFF.
184. DEFENDANT acted to achieve a collateral purpose, beyond or in addition to PLAINTIFF's criminal prosecution.
185. DEFENDANT's actions deprived PLAINTIFF of their constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
186. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Malicious Prosecution Under
New York State Law

187. The above paragraphs are here incorporated by reference as though fully set forth.
188. By their conduct, as described herein, DEFENDANTS are liable to PLAINTIFF for the violation of their constitutional right to be free from malicious prosecution under Common Law, the Laws of the State of New York and the New York Constitution.
189. DEFENDANTS, acting with malice, initiated a prosecution against PLAINTIFF and caused them to be prosecuted.
190. The prosecution by DEFENDANTS of PLAINTIFF constituted malicious prosecution in that there was no basis for PLAINTIFF's arrest, yet DEFENDANTS continued with the prosecution, which was resolved in PLAINTIFF's favor.
191. DEFENDANT City, as employer of the individual DEFENDANTS, is responsible for their wrongdoing under the doctrine of respondeat superior.

192. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

193. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Malicious Prosecution

Under 42 U.S.C. §1983 Against Individual DEFENDANTS

194. The above paragraphs are here incorporated by reference as though fully set forth.

195. By their conduct, as described herein, DEFENDANTS are liable to PLAINTIFF for the violation of their constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

196. DEFENDANTS, acting with malice, initiated a prosecution against PLAINTIFF and caused them to be prosecuted.

197. The prosecution by DEFENDANTS of PLAINTIFF constituted malicious prosecution in that there was no basis for PLAINTIFF's arrest, yet DEFENDANTS continued with the prosecution, which was resolved in PLAINTIFF's favor.

198. DEFENDANT City, as employer of the individual DEFENDANTS, is responsible for their wrongdoing under the doctrine of respondeat superior.

199. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

200. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Assault and Battery Under
New York State Law

201. The above paragraphs are here incorporated by reference as though fully set forth.
202. DEFENDANTS made PLAINTIFF fear for their physical well-being and safety and placed PLAINTIFF in apprehension of immediate harmful and/or offensive touching.
203. DEFENDANTS engaged in and subjected PLAINTIFF to immediate harmful and/or offensive touching and battered them without their consent.
204. DEFENDANT City, as employer of the individual DEFENDANTS, is responsible for their wrongdoing under the doctrine of respondeat superior.
205. As a direct and proximate result of this breach, PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
206. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Excessive Force Under
42 U.S.C. § 1983

207. The above paragraphs are here incorporated by reference as though fully set forth.
208. The DEFENDANTS, violated the Fourth, Eighth, and Fourteenth Amendments because they used unreasonable force on the PLAINTIFF without consent.

209. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF DOUGLAS)

Excessive Force Under
42 U.S.C. § 1983

210. The above paragraphs are here incorporated by reference as though fully set forth.

211. The DEFENDANTS, violated the Fourth, Eighth, and Fourteenth Amendments because they used unreasonable force on the PLAINTIFF without consent which did cause her emotional injuries.

212. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Intentional Infliction of Emotional Distress
Under New York State Law

213. The above paragraphs are here incorporated by reference as though fully set forth.

214. DEFENDANTS broke PLAINTIFF's car window, and then entered PLAINTIFF's vehicle forcefully, without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.

215. By unlawfully and forcibly entering PLAINTIFF's property, and DEFENDANT proceeding to thereafter assault PLAINTIFF by, among other things, repeatedly tazing PLAINTIFF in front of PLAINTIFF's partner, his child, and loved ones, DEFENDANTS intentionally and for the purpose of causing severe emotional distress recklessly conducted themselves towards PLAINTIFF in a manner so shocking and outrageous that it exceeded all reasonable bounds of decency resulting in causing PLAINTIFF severe emotional distress.

216. DEFENDANTs were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
217. DEFENDANT City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
218. By reason of the foregoing, PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
219. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION (PLAINTIFF BARRET & PLAINTIFF DOUGLAS)

Municipal “Monell” Liability
42 U.S.C. § 1983 Against Individual DEFENDANTs

220. The above paragraphs are here incorporated by reference as though fully set forth.
221. DEFENDANTs, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFFs’ constitutional rights.
222. DEFENDANT City maintained a policy or custom that caused PLAINTIFF to be deprived of their civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as PLAINTIFFs, to such a violent behavior.
223. DEFENDANT City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.

224. DEFENDANT City, it's policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's deliberate indifference towards the rights of those who may come into contact with DEFENDANT City's employees.
225. DEFENDANT City's employees engaged in such a egregious and flagrant violations of PLAINTIFFs' constitutional right that the need for enhanced training or supervision is obvious and equates to a display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
226. DEFENDANT City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.

CAUSE OF ACTION

Negligent Hiring, Retention and Supervision
Under New York State Law

227. The above paragraphs are here incorporated by reference as though fully set forth.
228. DEFENDANT City owed a duty of care to PLAINTIFF to adequately hire, retain and supervise its employee DEFENDANTS.
229. DEFENDANT City breached that duty of care.
230. DEFENDANT City placed DEFENDANTS in a position where they could inflict foreseeable harm.
231. DEFENDANT City knew or should have known of its employee DEFENDANTS' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by PLAINTIFF.

232. DEFENDANT City failed to take reasonable measures in hiring, retaining and supervising its employee DEFENDANTS that would have prevented the aforesaid injuries to PLAINTIFF.
233. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.
234. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.
235. DEFENDANT City's conduct cause the violation of PLAINTIFF civil rights enumerated within the Constitution of the United States pursuant to the Fourth, Sixth, and Fourteenth and under rights including:
- a) Not to be deprived of liberty without due process of law;
 - b) To be free from seizure and arrest not based upon probable cause;
 - c) Not to have summary punishment imposed upon them; and
 - d) To receive equal protection under the law.
236. As a direct and proximate result of this conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION CAUSE OF ACTION (PLAINTIFF BARRETT)

Individual DEFENDANT Officer's Violation of PLAINTIFF's AC 8-802 Rights

237. The above paragraphs are here incorporated by reference as though fully set forth.
238. DEFENDANT Officers' acts constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.
239. DEFENDANT Officers' acts caused PLAINTIFF to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be

secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

240. DEFENDANT Officers, while in uniform, unlawfully seized, assaulted, frisked, and searched the PLAINTIFF, before detaining PLAINTIFF and further causing their detention.

241. As a direct and proximate result of this conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Individual DEFENDANT Officer's Failure to Intervene
in Violation of PLAINTIFF's AC 8-802 Rights

242. The above paragraphs are here incorporated by reference as though fully set forth.

243. DEFENDANT Officers' acts constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

244. DEFENDANT Officers had a duty to protect PLAINTIFF from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

245. DEFENDANT officers that did not physically touch PLAINTIFF but were present when other officers violated PLAINTIFF's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of PLAINTIFF, whose constitutional rights were being violated in their presence by other officers.

246. DEFENDANTs failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect PLAINTIFF from violation of their rights.

247. As a direct and proximate result of this conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Violation of Article I, § 12 of the New York State Constitution

248. The above paragraphs are here incorporated by reference as though fully set forth.

249. Such conduct breached the protections guaranteed to PLAINTIFF by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

i. freedom from unreasonable search and seizure of their person and property;

ii. freedom from arrest without probable cause;

iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention PLAINTIFF was aware and did not consent;

iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual DEFENDANTS; and

v. freedom from deprivation of liberty without due process of law.

250. By reason of the foregoing, PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

CAUSE OF ACTION CAUSE OF ACTION (PLAINTIFF DOUGLAS)

Individual DEFENDANT Officer's Violation of PLAINTIFF's AC 8-802 Rights

251. The above paragraphs are here incorporated by reference as though fully set forth.

252. DEFENDANT Officers' acts constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.
253. DEFENDANT Officers' acts caused PLAINTIFF to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
254. DEFENDANT Officers, while in uniform, unlawfully stopped, detained, used excessive force on PLAINTIFF, before detaining PLAINTIFF and further causing their detention.
255. As a direct and proximate result of this conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF DOUGLAS)

Individual DEFENDANT Officer's Failure to Intervene
in Violation of PLAINTIFF's AC 8-802 Rights

256. The above paragraphs are here incorporated by reference as though fully set forth.
257. DEFENDANT Officers' acts constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.
258. DEFENDANT Officers had a duty to protect PLAINTIFF from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
259. DEFENDANT officers that did not physically touch PLAINTIFF but were present when other officers violated PLAINTIFF's AC 8-802 right against unreasonable search and

seizure and excessive force had an affirmative duty to intervene on behalf of PLAINTIFF, whose constitutional rights were being violated in their presence by other officers.

260. DEFENDANTS failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect PLAINTIFF from violation of their rights.

261. As a direct and proximate result of this conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION (PLAINTIFF DOUGLAS)

Violation of Article I, § 12 of the New York State Constitution

262. The above paragraphs are here incorporated by reference as though fully set forth.

263. Such conduct breached the protections guaranteed to PLAINTIFF by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

vi. freedom from unreasonable search and seizure of their person and property;

vii. freedom from unlawful stop;

viii. freedom from being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention

PLAINTIFF was aware and did not consent;

ix. freedom from deprivation of liberty without due process of law.

264. By reason of the foregoing, PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

CAUSE OF ACTION (PLAINTIFF BARRETT)

Loss of Consortium
Under New York State Law

265. PLAINTIFF incorporate by reference the preceding paragraphs as if fully set forth herein
266. As a direct and proximate result of the DEFENDANTS' actions, PLAINTIFF has suffered a loss of consortium with each other, including but not limited to:
- i. Loss of companionship;
 - ii. Loss of affection;
 - iii. Loss of support;
 - iv. Emotional distress caused by the injury to PLAINTIFF.
258. Plaintiff claims that these losses are a direct consequence of the DEFENDANTS' wrongful conduct

CAUSE OF ACTION (PLAINTIFF DOUGLAS)

Loss of Consortium
Under New York State Law

267. PLAINTIFF incorporate by reference the preceding paragraphs as if fully set forth herein
268. As a direct and proximate result of the DEFENDANTS' actions, PLAINTIFF has suffered a loss of consortium, including but not limited to:
- v. Loss of companionship;
 - vi. Loss of affection;
 - vii. Loss of support;
 - viii. Emotional distress caused by the injury to PLAINTIFF.
269. Plaintiff claims that these losses are a direct consequence of the DEFENDANTS' wrongful conduct.

JURY DEMAND

270. PLAINTIFFs hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, PLAINTIFFs respectfully requests judgment against DEFENDANTS, jointly and severally:

- a) For each and every of the previously stated Cause(s) of Action, a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter; and
- b) Awarding PLAINTIFFs reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- c) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
October 28, 2024



JOHN PAUL DEVERNA ESQ PC
By John Paul DeVerna, Esq.
Attorney for PLAINTIFF(s)
111 John Street, Suite 1850
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **JOHN PAUL DEVERNA ESQ PC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not PLAINTIFFs is because PLAINTIFFs do not reside in the county where I maintain my office.

DATED: New York, New York
October 28, 2024



JOHN PAUL DEVERNA ESQ PC
By John Paul DeVerna, Esq.
Attorney for PLAINTIFF(s)
111 John Street, Suite 1850
New York, New York 10038
T- (212) 321-0025
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Index No. :

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

DAVID BARRETT and MAEGAN DOUGLAS,

PLAINTIFFs,

-against-

CITY OF NEW YORK; VAHID HODZIC; CONOR MCGOURAN; JULIO ACURIA;
JUSTIN SUAREZ; FRANDDY DURAN; KARLVIRN WILLIAMS; ALYSSA STRONG;
TIAGOM REIS; AND JOHN AND JANE DOE ONE THROUGH TWELVE,

DEFENDANTs.

SUMMONS AND VERIFIED COMPLAINT

JOHN PAUL DEVERNA ESQ PC
By John Paul DeVerna, Esq.
Attorney for PLAINTIFF(s)
111 John Street, Suite 1850
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK
Attorney(s)for DEFENDANTs

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DAVID BARRETT AND MAEGAN DOUGLAS,

PLAINTIFF/PETITIONER,

Index No.:

-against-

CITY OF NEW YORK; VAHID HODZIC; CONOR MCGOURAN; JULIO ACURIA; JUSTIN SUAREZ;
FRANDDY DURAN; KARLVIRN WILLIAMS; ALYSSA STRONG; TIAGOM REIS; AND JOHN AND JANE
DOE ONE THROUGH TWELVE,

DEFENDANT/RESPONDENT.
-----X

**NOTICE OF ELECTRONIC FILING
(Mandatory Case)
(Uniform Rule § 202.5-bb)**

You have received this Notice because:

- 1) The Plaintiff/Petitioner, whose name is listed above, has filed this case using the New York State Courts E-filing system ("NYSCEF"), and
- 2) You are a Defendant/Respondent (a party) in this case.

• **If you are represented by an attorney:**

Give this Notice to your attorney. (Attorneys: see "Information for Attorneys" pg. 2).

• **If you are not represented by an attorney:**

You will be served with all documents in paper and you must serve and file your documents in paper, unless you choose to participate in e-filing.

If you choose to participate in e-filing, you must have access to a computer and a scanner or other device to convert documents into electronic format, a connection to the internet, and an e-mail address to receive service of documents.

The benefits of participating in e-filing include:

- serving and filing your documents electronically
- free access to view and print your e-filed documents
- limiting your number of trips to the courthouse
- paying any court fees on-line (credit card needed)

To register for e-filing or for more information about how e-filing works:

- visit: www.nycourts.gov/efile-unrepresented or
- contact the Clerk's Office or Help Center at the court where the case was filed. Court contact information can be found at www.nycourts.gov

To find legal information to help you represent yourself visit www.nycourthelp.gov

**Information for Attorneys
(E-filing is Mandatory for Attorneys)**

An attorney representing a party who is served with this notice must either:

- 1) immediately record his or her representation within the e-filed matter on the NYSCEF site www.nycourts.gov/efile ; or
- 2) file the Notice of Opt-Out form with the clerk of the court where this action is pending and serve on all parties. Exemptions from mandatory e-filing are limited to attorneys who certify in good faith that they lack the computer hardware and/or scanner and/or internet connection or that they lack (along with all employees subject to their direction) the knowledge to operate such equipment. [Section 202.5-bb(e)]

For additional information about electronic filing and to create a NYSCEF account, visit the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: nyscef@nycourts.gov).

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